FICTIONAL SAMPLE. Not a real case, not filed with any court, and not legal advice.

Kitchen remodel dispute: can the owner win without a trial?

Rivera v. Cedar Hollow Remodeling LLC (fictional sample). A homeowner's breach of contract claim, an unsigned $9,400 change order, and how to prove damages.

Rivera v. Cedar Hollow Remodeling LLC · Prepared 3 November 2026 from this conversation, your case papers, and your saved case law. Each case below shows whether it was confirmed.

Bottom line

Ms. Rivera has a strong motion on breach and on the $9,400 charge, because the key facts are in writing. The weak spot is damages: the $21,750 completion quote must be reasonable, and Cedar Hollow gets credit for the $12,000 she never paid. Her likely net claim is about $9,750 before any other losses, so the cost of a long fight matters.

Your question: Can I get the contractor's extra charge thrown out and win on breach of contract without going to trial?

1. Probably yes on breach. The contract set a date and a scope, and the contractor's own text shows it stopped work until it was paid.

2. Probably yes on the $9,400. Section 7 required a signed change order, and your July 2 text insisted on one.

3. Probably not on the final dollar amount. Damages usually need testimony, so ask the court to reserve them for trial.

4. Expect one counterargument: that you knew about the electrical work and let it happen. Actual notice is not enough under Mike M. Johnson, but read the texts carefully for anything that sounds like approval.

The strongest arguments

1

The contract says what it says

Washington reads contracts by the words used, not private intent. *Hearst*, 154 Wn.2d at 503-04. Sections 2, 4, and 7 are plain, so there is little for a jury to decide.

2

No signature, no change order

Contractors must follow contract notice procedures unless waived, and actual notice is no exception. *Mike M. Johnson*, 150 Wn.2d at 377, 386. The July 2 text is the best fact in the case.

3

Refusing to return is a breach

Duty, breach, and resulting damage are all shown by the agreement, the July 11 text, and the completion estimate. *Nw. Indep. Forest Mfrs.*, 78 Wn. App. at 712.

Case table

Filter by how each case cuts. Unpublished and out-of-state cases are never treated as binding.

CASE	HOLDING	USE
Mike M. Johnson, Inc. v. County of Spokane 150 Wn.2d 375, 78 P.3d 161 (2003), Washington Supreme Court, published	Actual notice is not an exception to mandatory contract protest and claim procedures. Waiver by conduct needs unequivocal acts showing intent to waive.	HELPS FOUND ON COURTLISTENER Lead case on the $9,400. Note that it involved a public works contract, so explain why the same rule fits a home remodel.
Hearst Communications, Inc. v. Seattle Times Co. 154 Wn.2d 493, 115 P.3d 262 (2005), Washington Supreme Court, published	Washington follows the objective manifestation theory: courts look at the words of the agreement, not unexpressed intent.	HELPS FOUND ON COURTLISTENER Use it to keep the focus on Section 7's plain words.
Northwest Independent Forest Manufacturers v. Department of Labor & Industries 78 Wn. App. 707, 899 P.2d 6 (1995), Court of Appeals, published	A breach of contract is actionable only if the contract imposes a duty, the duty is breached, and the breach proximately causes damage.	HELPS FOUND ON COURTLISTENER Use it as the checklist for the elements.

CASE	HOLDING	USE
Young v. Key Pharmaceuticals, Inc. 112 Wn.2d 216, 770 P.2d 182 (1989), Washington Supreme Court, published	The moving party bears the initial burden of showing there is no issue of material fact.	BOTH FOUND ON COURTLISTENER It sets the standard. As the moving party with the burden at trial, you must prove each element with admissible evidence.
Eastlake Construction Co. v. Hess 102 Wn.2d 30, 686 P.2d 465 (1984), Washington Supreme Court, published	Restatement (Second) of Contracts § 348 governs construction damages. Repair cost is not awarded if clearly disproportionate to the probable loss in value.	BOTH FOUND ON COURTLISTENER Helps prove completion cost. Be ready for an argument that part of the quote is an upgrade or is disproportionate.

5 cases shown

What Section 7 and CR 56 actually require

Section 7 has three parts: the change must be in writing, signed by both parties, and signed before the work is done. The invoice fails the second and third parts.

CR 56 needs admissible evidence. Texts and the contract come in through your declaration. The repair estimate is weaker on its own, so get a short declaration from the contractor who wrote it.

Recommended order of argument

1. Start with the signed agreement and its plain terms.
2. Show the missed date and the July 11 refusal to return.
3. Then defeat the $9,400 charge under Section 7 and Mike M. Johnson.
4. Close by asking the court to reserve damages.

Check before filing

- [ ] **Read every text for approval language.** A message like 'go ahead' could support a waiver argument.
- [ ] **Get a declaration from the completing contractor.** An unsworn estimate may be challenged as hearsay.
- [ ] **Confirm the motion deadlines and hearing date.** CR 56 and local rules set timing, and missing them can end the motion.
- [ ] **Check for an attorney fee or arbitration clause.** Either one can change the strategy and the forum.
- [ ] **Check the contractor's registration and bond.** A bond can be a source of payment.

Sources

- CR 56, Washington Superior Court Civil Rules
- Restatement (Second) of Contracts § 348

Research snapshot, 3 November 2026. Check every citation marked VERIFY against the official reports before filing.